

Tentative Rulings for Department 501

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Tentative Ruling

Re: ***Hakim v. ASM Global, LLC, et al.***
Superior Court Case No. 25CECG03286

Hearing Date: July 7, 2026 (Dept. 501)

Motion: By Plaintiff for an Order Compelling Defendant SMG's Initial Responses to Form Interrogatories, Special Interrogatories, Requests for Production of Documents, and to Deem Requests for Admission Admitted; Request for Sanctions

Tentative Ruling:

To deny the motions and request for sanctions against defendant SMG without prejudice. (Code Civ. Proc., §§ 2030.250, 2031.250, 2033.240, 2030.290, subd. (c), 2031.300, subd. (c), 2033.280, subd (c).)

Explanation:

Plaintiff Terajee Hakim move under Code of Civil Procedure sections 2030.290 and 2031.300, to compel defendant SMG to respond to Form Interrogatories – General, set one and two, Form Interrogatories – Employment Law, set one, Special Interrogatories, set one, and Request for Production of Documents, set one. Plaintiff is also moving under Code of Civil Procedure section 2033.280 for an order deeming Request for Admission, set one, deemed admitted by defendant SMG.

Code of Civil Procedure sections 2030.290, 2031.300 and 2033.280 govern motions where the answering party fails to serve a timely response. Here, however, the moving papers indicate that timely responses were served on February 9, 2026, following a series of extensions to respond to the discovery propounded. A response containing only objections need not be verified and is complete at the time of service. (Code Civ. Proc., §§ 2030.250, 2031.250, 2033.240; *Blue Ridge Ins. Co. v. Sup.Ct.* (1988) 202 Cal.App.3d 339, 344.)

Accordingly, since the motions are brought under inapplicable statutes, the motions are denied without prejudice.

If a party asks for monetary sanctions against the party who failed to respond to interrogatories, the court shall impose a monetary sanction against the losing party on the motion to compel unless it finds that the one subject to the sanction acted with substantial justification or circumstances make the sanctions unjust. (Code Civ. Proc., § 2030.290, subd. (c).) Sanctions are similarly authorized against a party who failed to respond to a demand for inspection or production. (*Id.*, § 2031.300, subd. (c).) Sanctions are also mandatory where a party failed to respond to a request for admission. (*Id.*, § 2033.280, subd. (c).)

The corresponding requests for sanctions are also brought under inapplicable statutes, and are denied without prejudice.

